

Vinay Ranjan v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 15 February 2016 · Writ-C No. 32605 of 2013 · **Writ dismissed; petitioner relegated to statutory remedy against the bill.**

HEADNOTE

A writ seeking to quash a Tehsildar recovery certificate for electricity dues was dismissed. Recovery cannot be challenged without challenging the assessment order or bill; the remedy lies under the Electricity Act, 2003 / Electricity Supply Code, 2005. Any interim order stood discharged.

FACTUAL SUMMARY

Vinay Ranjan filed a 2013 writ in the Allahabad High Court to quash a recovery certificate dated 20 April 2013 issued by the Tehsildar, Phulpur, Allahabad, for electricity dues. The petition remained pending from May 2013 without any interim stay of recovery. After listing orders in May and July 2013 — including one when none appeared for the petitioner — a Division Bench took up the petition on 15 February 2016.

HOLDING-UNITS

INTERPLAY · EA2003:: / UP-2005::

writ challenge to recovery without assessment or bill

HOLDING

A recovery certificate for electricity dues cannot be challenged in writ without challenging the assessment order or bill. The petitioner may pursue the remedy against the assessment or bill under the Electricity Act, 2003 / Electricity Supply Code, 2005, as applicable. The writ, pending since May 2013 without interim relief, was dismissed and any interim order discharged. ¶ 1

FLAG Order cites the Electricity Act 2003 and Electricity Supply Code 2005 generally, without a numbered section or clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT ORDER, BILL, OR RECOVERY CERTIFICATE ON MERITS

Writ dismissed; petitioner relegated to the statutory forum under the Electricity Act 2003 / Supply Code 2005. ¶ 1